

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Stacee Cootes v. Vincent Spohn et al

24CV000657

[1] DEFENDANTS’ MOTION TO COMPEL INTERROGATORY RESPONSES AND REQUEST FOR MONETARY SANCTIONS IN AN AMOUNT NO LESS THAN \$960

TENTATIVE RULING: The Motion is GRANTED. Plaintiff is ordered to serve, within 10 calendar days from the Notice of Entry of Order, a verified supplemental response to Special Interrogatory, Set One, No. 12 in accordance with this ruling. Plaintiff’s counsel is ordered to pay to Defendants, care of their attorney of record, sanctions in the amount of \$460, within 10 calendar days from Notice of Entry of Order. Defendants are directed provide Notice of Entry of this Order.

A. PROCEDURAL MATTERS

Defendants Vincent Spohn and Law Offices of Vincent M. Spohn (collectively, “Attorney Spohn”), and Bruce Ketron (with Attorney Spohn, “Defendants”) move, pursuant to Code of Civil Procedure section 2030.300, for an order compelling Plaintiff Stacee Cootes to serve verified supplemental responses to Attorney Spohn’s Special Interrogatories, Set One, No. 12. Defendants further move for an order awarding monetary sanctions in favor of Defendants in the amount of \$960.00 against Plaintiff and/or her counsel, Eric B. Seuthe of Law Offices of Eric Bryan Seuthe & Associates.

By Minute Order dated July 14, 2026, the Motion was continued to allow Defendants to provide sufficient notice of the Motions. On July 14, 2026, Defendants filed an Amended Notice with the continued hearing date and a Proof of Service demonstrating proper service. There is no Opposition on file as of the time the Court has prepared this Tentative Ruling, which is after the statutory deadline to file and serve an opposition to a motion. (§ 1005, subd. (b).)³

B. LEGAL STANDARD

On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems an answer to a particular interrogatory is evasive or incomplete. (§ 2030.300, subd. (a)(1).)

If a timely motion to compel is filed, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but “the burden of justifying any objection and failure to respond remains at all times with the party resisting an

³ Plaintiff filed a late opposition on August 10, 2026, three days before the hearing. An opposition filed after the deadline for a moving party to file a reply is inherently prejudicial to the moving party. Plaintiff’s opposition offers no reason for her failure to comply with the Code of Civil Procedure. The Court has previously cautioned Plaintiff’s counsel that the Court may elect to disregard her nonconforming papers should she continue to fail to comply with procedural laws. (See 12/6/24 Minute Order.) For all of these reasons, the opposition is disregarded. (Rules of Court, rule 3.1300, subdivision (d).)

interrogatory.” (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-21.) To show an interrogatory seeks relevant, discoverable information “is not the burden of [the party propounding interrogatories]. As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422.)

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. ... If an interrogatory cannot be answered completely, it shall be answered to the extent possible. ... If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (§ 2030.220, subds. (a)-(c).)

C. DISCUSSION

Defendants argue that Plaintiff failed to provide a complete and accurate response to Special Interrogatory No. 12. Special Interrogatory, Set One, No. 12 asks Plaintiff to identify the last known contact information for Laurie Carlson, including telephone number, email, and address. (Separate Statement, p. 2.) Plaintiff provided Ms. Carlson’s email address and states she does not know her last known telephone number or last known address. (*Ibid.*)

Defendants show good cause for the Interrogatory. Specifically, Defendants argue that Ms. Carlson is the sole individual who allegedly informed Plaintiff of Defendant Spohn’s alleged 5150 holds “which purportedly implicated his ability to represent Plaintiff in the Underlying Action.” (*Id.*) Thus, Defendants contend that Ms. Carlson has critical information relating to Plaintiff’s claims against Defendants. (*Id.*) Defendants assert they have been unable to locate Ms. Carlson and, without Ms. Carlson’s contact information, Defendants are unable to properly serve subpoenas on her via personal service.

In support of their contention that the response is incomplete and/or inaccurate, Defendants show that Plaintiff’s prior document production and deposition testimony confirm that Plaintiff has Ms. Carlson’s telephone number. (See Mem., 5:7-9, citing Exhibit A at p. 172:8-18; Exh. D.) This tends to show that Plaintiff has been in contact with Ms. Carlson via telephone, in which case a response solely stating that Plaintiff does not know Ms. Carlson’s telephone number is, at most, inaccurate and, at least, incomplete for failure to explain the discrepancy. Moreover, Plaintiff’s response fails to state that she made a reasonable and good faith effort to obtain the information and still does not have personal knowledge sufficient to respond fully.

Based on the foregoing, the Motion is GRANTED.

D. SANCTIONS

“[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2030.300, subd. (d).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

A court may impose sanctions against an attorney only if the attorney advised the client to engage in the improper conduct. (*Kwan Software Eng'g, Inc. v Hennings* (2020) 58 Cal.App.5th 57, 81, 85.) Whether the attorney gave such advice is known only to the attorney and his client and therefore the attorney has the burden of proving he gave no such advice. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 799-804.) Here, Plaintiff's counsel provides no evidence that he did not advise his client as to the deficiencies raised through the Motion. As such, sanctions against Plaintiff's counsel is permitted.

The Court finds neither that Plaintiff's counsel acted with substantial justification nor that other circumstances make imposition of sanctions unjust. Plaintiff's counsel failed to file a timely Opposition and failed to respond to Defendants' meet and confer efforts to avoid this motion. (See Declaration of Kristin C. Choi (“Choi Decl.”), ¶ 7.) The Court finds that the hourly rate charged by counsel is reasonable. (*Id.* at ¶¶ 8-10.) Defendants' counsel fails to assert the reasonable number of billable hours for preparation of the present motion (instead, only addressing the concurrent motion as to document demands). (*Id.*, ¶ 11.) That said, the Court finds that 2 hours is a reasonable number of billable hours for preparation of the motion.

Based on the foregoing, Defendants request for sanctions as against Plaintiff is GRANTED IN PART. Plaintiff's counsel is ordered to pay to Defendants, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (2 hrs x \$230/hr) = \$460.

[2] DEFENDANTS' MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET TWO; TO COMPEL PRODUCTION OF DOCUMENTS; COMPEL COMPLIANCE; AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,460

TENTATIVE RULING: The Motion is GRANTED IN PART and DENIED IN PART. The Motion to Compel Further Responses to Document Demands Nos. 33-44 is DENIED. The Motion to Compel Compliance with Responses to Document Demands Nos. 51-52 is GRANTED. Plaintiff is ordered to produce, within 10 calendar days from the Notice of Entry of Order, documents responsive to Nos. 51-52. Plaintiff's counsel is ordered to pay to Defendants, care of their attorney of record, sanctions in the amount of \$230, within 10 calendar days from Notice of Entry of Order. Defendants are directed provide Notice of Entry of this Order.

A. PROCEDURAL MATTERS

Defendants Vincent Spohn and Law Offices of Vincent M. Spohn (collectively, “Attorney Spohn”), and Bruce Ketron (with Attorney Spohn, “Defendants”) move, pursuant to Code of Civil Procedure sections 2031.310 and 2031.320, for an order compelling Plaintiff Stacey Coates to further respond to Attorney Spohn’s Request for Production of Documents, Set Two, (“Document Demands”) Nos. 33-44 and to comply with Plaintiff’s agreement to produce documents responsive to Document Demands Nos. 51-52. Defendants further move for an order granting monetary sanctions in the amount of \$1,460 against Plaintiff and/or her counsel, Eric B. Seuthe of Law Offices of Eric Bryan Seuthe & Associates.

By Minute Order dated July 14, 2026, the Motion was continued to allow Defendants to provide sufficient notice of the Motions. On July 14, 2026, Defendants filed an Amended Notice with the continued hearing date and a Proof of Service demonstrating proper service. There is no Opposition on file as of the time the Court has prepared this Tentative Ruling, which is after the statutory deadline to file and serve an opposition to a motion. (§ 1005, subd. (b).)⁴

B. DISCUSSION

1. Motion to Compel Further Responses is Denied

On receipt of a response to a document demand, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (§ 2031.310, subd. (a).)

A party moving to compel responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Sup. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland*, *supra*, 95 Cal.App.4th at 98.)

Document Demand Nos. 33-40 seek documents reflecting any input into and output by ChatGPT, OpenAI, Google Gemini, Microsoft Copilot, Anthropic Claude, or any other

⁴ Plaintiff filed a late opposition on August 10, 2026, three days before the hearing. An opposition filed after the deadline for a moving party to file a reply is inherently prejudicial to the moving party. Plaintiff’s opposition offers no reason for her failure to comply with the Code of Civil Procedure. The Court has previously cautioned Plaintiff’s counsel that the Court may elect to disregard her nonconforming papers should she continue to fail to comply with procedural laws. (See 12/6/24 Minute Order.) For all of these reasons, the opposition is disregarded. (Rules of Court, rule 3.1300, subdivision (d).)

generative acritical intelligence model, application, or software used by Plaintiff for or related to a variety of defined actions, including the present litigation. (See Separate Statement.)

Plaintiff objected based on a host of grounds, including attorney-client privilege and work product doctrine. (*Ibid.*) Subject to the objections, Plaintiff responded that “[she] has concluded a reasonable search and has found no documents within their possession, custody, or control,” explaining that the AI systems do not keep a history of documents. (*Id.*) Plaintiff further responded that she has already produced responsive records. (*Id.*)

As an initial matter, Defendants’ Separate Statement does not include the definitions for the actions referenced in Nos. 34-36 and 38-40. Defendants therefore failed to comply with Rules of Court, rule 3.1345(c)(4). Moreover, Defendants’ Memorandum does not address or define those referenced actions. As a result, Defendants have failed to provide sufficient information upon which the Court can consider the good cause for these Document Demands.

Furthermore, the Court finds that Defendants have not met their burden on the Motion. Defendants’ discussion of good cause is brief and perfunctory. The universe of Defendants’ argument is that the ChatGPT responses are relevant to Defendants’ defense against Plaintiff’s claims because Plaintiff conceded that she relied on ChatGPT to inform her of her theories supporting various claims, including whether Defendant Ketron gave her legal advice in the Underlying Action, and that documents produced by Plaintiff on April 10, 2026 reflect Plaintiff’s use of ChatGPT. (Mem., 3:1-12, 6:15-17, 8:5-6, citing Exh. A, at 123:19-124:7, and Exh. C; Notice of Motion, 2:6-12.)

Defendants’ argument is essentially that the documents are relevant because they exist. Defendants do not set forth a fact-specific showing of relevance, or state how the documents might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.

To the contrary, the fact that Plaintiff used AI platforms to determine certain legal theories pursued in this matter does not strike the Court as relevant to assisting Defendants in evaluating their case, preparing for trial, or facilitating a settlement. According to Defendants, the AI platforms helped form the underlying bases asserted through Plaintiff’s pleadings. The fact that someone researched their potential legal claims based on facts known to them, does not make all research results or the searches relevant. Moreover, in this context, the AI results are not facts relevant to prove or disprove those legal bases. Nor is it necessarily true that all research searches or results from the AI platforms are, in fact, being pursued. Defendants offer no reason why the research documents need to be independently studied when, presumably, the legal theories contained in Plaintiff’s pleadings reflect the results from Plaintiff’s research.

Based on the foregoing, Defendants have failed to show good cause justifying the discovery sought by Document Demands. This finding renders it unnecessary for the Court to reach the sufficiency of Plaintiff’s response to these document demands. The motion to compel further responses is DENIED.

2. Motion to Compel Compliance is Granted

If the responding party agrees to comply with a section 2031.010 demand but then fails to do so, compliance may be compelled on appropriate motion. (§ 2031.320.) All that has to be shown is the responding party's failure to comply as agreed. (*Ibid.*; see *Standon Co., Inc. v. Sup.Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.)

In response to these Document Demands, Plaintiff responded that she "is producing all responsive documents in their possession, custody, or control as Exhibit 51." (Separate Statement, pp. 32-33.) Defendants argue that Plaintiff has not complied with her verified statement that she would produce responsive documents to Nos. 51-52. (Mem., 4:11-15, citing Exh. D.)

Based on the foregoing, the motion to compel compliance is GRANTED. Plaintiff is ordered to produce documents responsive to Nos. 51-52 within 10 calendar days from Notice of Entry of Order.

3. Sanctions

In light of the ruling denying Defendants' motion to compel further responses, Defendants' request for sanctions thereon is DENIED. (§ 2030.310, subd. (h).)

"The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2031.320, subd. (b).) Moreover, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

A court may impose sanctions against an attorney only if the attorney advised the client to engage in the improper conduct. (*Kwan Software Eng'g, Inc. v Hennings* (2020) 58 Cal.App.5th 57, 81, 85.) Whether the attorney gave such advice is known only to the attorney and his client and therefore the attorney has the burden of proving he gave no such advice. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 799-804.) Here, Plaintiff's counsel provides no evidence that he did not advise his client as to the deficiencies raised through the Motion. As such, sanctions against Plaintiff's counsel is permitted.

The Court finds neither that Plaintiff's counsel acted with substantial justification nor that other circumstances make imposition of sanctions unjust. Plaintiff's counsel failed to file a timely Opposition and failed to respond to Defendants' meet and confer efforts to avoid this motion. (See Declaration of Kristin C. Choi ("Choi Decl."), ¶¶ 5-6.) The Court finds that the hourly rate charged by counsel is reasonable. (*Id.* at ¶¶ 8-10.) Defendants' counsel provides the total amount of hours spent on the combined motion to compel further responses and motion to compel compliance. (*Id.*, ¶ 11.) Given that Defendants were unsuccessful on the motion to

compel further responses, the Court does not find it reasonable to sanction Plaintiff for the total amount of hours spent on the combined motion. That said, the Court finds that 1 hour is a reasonable number of billable hours for preparation of the motion to compel compliance.

Based on the foregoing, Defendants request for sanctions as against Plaintiff is GRANTED IN PART. Plaintiff's counsel is ordered to pay to Defendants, care of their attorney of record, within 10 calendar days of notice of entry of this order, sanctions in the amount of (1 hr x \$230/hr) = \$230.

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Creditors Adjustment Bureau, Inc. v. Rodrigo Barrera Lara et al **26CV000234**

[1] MOTION TO COMPEL RESPONSES TO PLAINTIFF'S DEMAND FOR IDENTIFICATION, PRODUCTION, INSPECTION AND COPYING OF DOCUMENTS AND OTHER TANGIBLE THINGS; REQUEST FOR MONETARY SANCTIONS [as to Defendant Rodrigo Barrera Lara]

TENTATIVE RULING: The motion is GRANTED. Within 10 calendar days of service of notice of entry of order, Barrera shall (1) serve verified code-compliant responses, without objections, to Plaintiff's First Set of Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things; and (2) pay to Plaintiff, care of its attorney of record, sanctions in the amount of \$572.75. Plaintiff shall provide notice of entry of this order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") moves, pursuant to Code of Civil Procedure, section 2031.300,⁵ for an order compelling Defendant Rodrigo Barrera Lara ("Barrera") to provide responses to Plaintiff's First Set of Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things ("Demands"). Plaintiff also moves, pursuant to sections 2023.010, 2023.030, and 2031.300, for monetary sanctions against Barrera in the amount of \$2,472.75 for the reasonable expenses and attorney's fees incurred by the moving party in connection with this motion.

If a party to whom requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (§ 2031.300, subds. (a)-(c).) All that need be shown in the moving papers is that a request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has

⁵ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.